



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3941 (EXTENSION)
THIRD REVISION February 1, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 3941 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 22 1994

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Aerojet Propulsion Division
Sacramento, CA

August 17, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

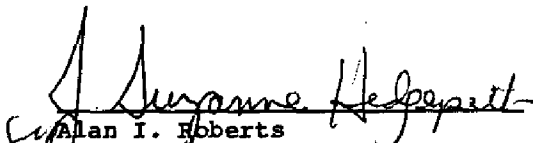
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3941 (PTE)
THIRD REVISION February 1, 1984

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 3941. The expiration date of the exemption for the party(ies) is October 31, 1993.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN 17 1992
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Western Electrochemical Company
Cedar City, UT

April 14, 1992



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 3941
(THIRD REVISION)

1. Aerojet Tactical Systems Co. (ATSC), Sacramento, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of an oxidizer for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of ammonium perchlorate in non-DOT specification portable tanks, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Kerr-McGee Chemical Corporation, Oklahoma City, Oklahoma - PTE-1.
Pacific Engineering & Production Company of Nevada,
Henderson, Nevada - PTE-2.

2. BASIS. This exemption is based on ATSC's petition dated June 9, 1982, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon; supplemented by letter dated December 13, 1983. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Kerr-McGee Chemical Corporation's application dated April 13, 1982.
Pacific Engineering & Production Co.'s application dated June 24, 1982.

3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium perchlorate, classed as oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium perchlorate.

5. REGULATION AFFECTED. 49 CFR 173.239a(a)(2).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is non-DOT specification 74 or 98 cubic foot capacity aluminum portable tanks built in accordance with Tote Systems drawings 310114, Rev. E. 320192, AGC drawing 1147261, Rev. C, or 316004 (Rev. B) on file with the Office of Hazardous Materials Regulation (OHMR). Each tank must have match marks on the external closure nut and door which indicate that the worm gear is in the closed position. Tanks may be modified by having side opening welded closed in accordance with Enclosure 2 (drawing) to petitioner's letter of August 22, 1975. Top closure may comply with petitioner's drawing 1153139, dated 10-31-75.

b. Each tank, filled or empty, must be inspected before loading on the car or vehicle to ascertain that there is no residue of lading adhering to the outside of the packaging, closures, and any fittings.

8. SPECIAL PROVISIONS.

a. Use of existing tanks authorized but new construction not authorized.

b. Each portable tank must be inspected and tested, prior to loading of contents, in accordance with the petitioner's Procedure No. G-2000-F, dated November, 1971.

c. Each rail car must be equipped with a steel floor, AAR Approved composition brake shoes, and roller bearings. Each car must further be equipped with adequate facilities for substantial blocking, bracing and tie-down.

d. For shipment by highway, tanks must be in closed van type trailers in full compliance with Section 177.834(g), or open-top equipment may be used provided:

i. The blocking, bracing, and tie-down arrangement is that shown on drawing no. 1147262, Revision A, dated June 8, 1977.

ii. The tanks are covered with a tarpaulin to keep rain and moisture off the tanks.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. June 30, 1984.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

SEP 1 1984

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA, FRA